6. A Court of Record

As a court of record, a high court has two powers:

1. The judgements, proceedings and acts of the high courts are recorded for perpetual memory and testimony. These records are admitted to be of evidentiary value and cannot be questioned when produced before any subordinate court. They are recognised as legal precedents and legal references.

2. It has power to punish for contempt of itself.

The expression 'contempt of court' has not been defined by the Constitution. However, the expression has been defined by the Contempt of Courts Act of 1971. Under this, contempt of court may be civil or criminal.

According to this Act, a High Court has power to punish for contempt of not only itself but also contempt of subordinate courts. However, no High Court shall take cognizance of a contempt alleged to have been committed in respect of a subordinate court, where such contempt is an offence punishable under the Indian Penal Code, 1860.

As a court of record, a high court also has the power to review and correct its own judgement or order or decision, even though no specific power of review is conferred on it by the Constitution. The Supreme Court, on the other hand, has been specifically conferred with the power of review by the constitution.

7. Power of Judicial Review

Judicial review is the power of a high court to examine the constitutionality of legislative enactments and executive orders of both the Central and state governments. On examination, if they are found to be violative of the Constitution (*ultra-vires*), they can be declared as illegal, unconstitutional and invalid (null and void) by the high court. Consequently, they cannot be enforced by the government.

Though the phrase 'judicial review' has no where been used in the Constitution, the provisions of Articles 13 and 226 explicitly confer the power of judicial review on a high court. The constitutional validity of a legislative enactment or an executive order can be challenged in a high court on the following three grounds:

1. it infringes the fundamental rights (Part III),

2. it is outside the competence of the authority which has framed it, and

3. it is repugnant to the constitutional provisions.

The 42nd Amendment Act of 1976 curtailed the judicial review power of high court. It debarred the high courts from considering the constitutional validity of any central law. However, the 43rd Amendment Act of 1977 restored the original position.

Table 34.1 Name and Jurisdiction of High Courts